ISHMAEL CHOKURONGERWA
versus
THE STATE

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE, 4 March 2026

Opposed Application

T Madamombe, for the applicant
K H Kunaka, for the respondent

WAMAMBO J: This is an application for bail pending appeal. The applicant was tried for 3 counts of rape (in contravention of s 65(1) of Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. He was acquitted of two of the three counts and found guilty of one count relating to the complainant, who I will refer to as P.T. He was sentenced to 20 years imprisonment.

The applicant has filed a notice of appeal containing five grounds of appeal which read as follows:

> "1. The court *a quo* erred in convicting the appellant on the basis of DNA results despite the failure by the state to prove the chain of custody of the DNA samples.
> 2. The court *a quo* also erred in convicting the appellant in the absence of evidence of the complaint and hence on the basis of an inadmissible sexual complaint.
> 3. The court *a quo* further erred in finding that the complainant's birth certificate was unauthentic and hence placing reliance on age estimation despite clear evidence on the record to the contrary.
> 4. The court *a quo* erred in finding that the complainant suffered from religious indoctrination notwithstanding that there is no evidence on the record to support such a finding.
> 5. The court *a quo* further erred in finding that Memory Munanairi was a credible witness and thereby placing reliance on her evidence despite evidence of bad blood between the witness and the appellant."

The respondent was opposed to the application. In the respondent's response the following is reflected:-

This case is peculiar because the requirements of a complaint of rape were not satisfied.

The State led evidence from all witnesses who handled the DNA samples and same were delivered "Safely and in good condition."

The issue of indoctrination was brought up by the witness Memory Chinanaire (hereinafter referred to as Memory) who was found to be a credible witness by the Court *a quo*. The evidence of Getrude Chitakatira, a police officer to some extent corroborated Memory's evidence.

P T (the complainant's) birth certificate did not affect the conviction on account of the charge the applicant was found guilty of.

This matter is indeed a novel one. It is not only based on DNA samples and an age estimate report but it is a matter where there is no complaint of rape from the complainant or her guardian.

In fact, the complainant herself (P.T) testified and in her evidence she exonerated the applicant.

P.T's mother produced a birth certificate reflecting that at the time of the commission of the offence P.T was above the age of consent.

The learned Magistrate was however, not convinced on the authenticity of the birth certificate and found that it was obtained after the applicant was arrested. Flowing there from is the implication that applicant was being protected by among other people the biological mother to T.P.

From a long list of cases the principles governing bail pending appeal are the likelihood of abscondment the prospects of success on appeal the right of an individual to liberty and the potential length of the delay before the appeal is heard. See *State* v *Labuschagne* 2003(1) ZLR 664 *Tendai Kamudyariwa* v *The State* HB 97/19.

It has to be emphasized that the presumption of innocence is no longer present. Further that the onus falls on the applicant.

Of the principles governing bail pending appeal it has to be noted that the greater the prospects of success on appeal the greater the chances of bail pending appeal being granted.

The fact that there was no direct complaint from the victim entailed a rigorous, focused and thorough investigation of the case. That there were such efforts is clear from the evidence tendered of record.

There is a High Court order of how the DNA samples were to be obtained and handled. Same was not followed to the letter in terms of the place where the samples were to be obtained, and the dates when such should be obtained. The chain of custody appears on the face of it to be broken.

The issue of indoctrination was canvassed, particularly by Memory who had fallen out with the church. She gave a detailed account of what appears to be indoctrination. She also gave evidence of the bad blood between her and the applicant. Her evidence will be considered by the appeal court in the full circumstances.

The production of T.P's birth certificate by her mother opened a can of worms. Officials testified that the birth certificate might have been obtained in highly suspicious circumstances.

The Learned Magistrate's explanation of how she reached the conclusion that P.T was raped is largely drawn from applicant's position in church, indoctrination and other localized circumstances.

The Learned Magistrate having accepted the age estimate that P.T was 15 years as of 2 April 2024 and that she had delivered a baby a few months before the date of age estimation concludes that she must be have been below the age of consent at the time of the commission of the offence.

For clarity I will quote the relevant remarks in the Trial Court's judgment at p 51 of the record.

> "On the 2nd April 2024 her dental examination placed (T.P) at approximately 15 years because her second molars present at full occlusion, her third molars not yet crowing so she concluded that she was between 14 and 15 and they take the highest figure which is 15 years. I earlier on indicated that I believed the accuracy in the dentist examination and I have no doubt she was 14 to 15 years. She gave birth on the 27th January 2024when she was below the age of consent and in her testimony she never said she consented. She even said she does not know that she had sexual intercourse with the accused person."

Among other things the above excerpt contains a statement that complainant never said she consented. That amounts to reverse onus if not a clear misdirection. It is the complainant who should testify to no consent not that she never testified to the effect that she consented.

The age estimate report is at p 593. It reflects that on the 2nd of April 2024 when P.T was examined she was about 15 years old. However, T.P in her own testimony said she was born on 16 December 2004.

However, going by the age estimate at the time of conception she was between 13 and 14 years old at the time of the commission of the offence.

As alluded to before there is no evidence placed on record of non-consensual sex between T.P and the applicant. The circumstances as found by the Trial Court were not directly testified to and are mostly by implication.

At the time of the alleged dates of rape and trial the age of consent was still 16 years old. Without evidence of non consent the applicant could be found of contravening s 70 (1) of the Criminal Law (Codification and Reform) [*Chapter 9.23*]. I say could in the sense that the issue of the DNA handling will also have to be unpacked by the appeal court.

I am of the considered view that a number of issues arising including the absence of a rape complaint by P.T, the DNA sample handling, and the issue of the age of T.P gives the applicant prospects of success on appeal.

I have noted in passing that the length of the sentence passed on the face of it appears rather lengthy, especially considering that no portion of the sentence was suspended. In any case considering the finding of prospects of success on appeal being present the sentence may be interfered with on appeal.

Linked to the likelihood of abscondment are the prospects of success on appeal. Although it can never be guaranteed that an applicant will not abscond, in the peculiar circumstances of this novel case with apparently strong prospects of success on appeal the likelihood of abscondment is reduced substantially.

Generally, appeals are heard without much delay everything else being equal. That is linked to the right of an individual to liberty. As alluded to earlier once convicted it is the convicted person's prerogative to prove that they deserve bail pending appeal.

In the circumstances I am of the considered view that applicant should be granted bail pending appeal. I note however, that the bail quantum ought to be revised upwards in the light of the gravity of the offence that he stands convicted of. To that end the bail quantum is hereby raised to US$1000.

I order as follows:-

"1.The application for bail pending appeal filed under case number HCHCR 7323/25 be and is hereby granted.

2. The applicant be and is hereby admitted to bail pending appeal on the following conditions, that he:-

2.1 deposits the sum of US$1000 (one thousand United States Dollars) with the Clerk of Court, Harare Magistrates Court.
2.2 continues to reside at Number 16 Jachacha Crescent, Msasa Park Harare until the appeal is finalized.
2.3 reports to C.I.D Law and Order, Harare thrice a week on Mondays, Wednesdays and Fridays between 6 am and 6 pm until the appeal is finalized.
2.4 appears in the High Court of Zimbabwe, Harare for the hearing and handing down of judgment of the appeal filed under case number HCHCR 7323/25"

WAMAMBO J:……..

FT Mangidza Attorneys, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners